

Personal Protective Equipment

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1 Purpose

To provide guidance in the identification, suitability and requirements for the use of Personal Protective Equipment (PPE), when assessment shows employees may be exposed to risks which cannot be controlled by other effective means.

2 Scope

This procedure applies to all ALIGN undertakings, relating to Sector C1 of the HS2 programme. This procedure applies to all work requiring PPE, carried out in association with the ALIGN operations, and that of their contractors. The ALIGN PPE guidance note details the consistent approach to PPE and the general dress code to be followed on all ALIGN sites. This guidance note details the 'default' position for certain items of PPE, and those items/activities which require to be risk assessed.

Additional PPE, as identified by the contractors risk assessment, will be in addition to the ALIGN default PPE.

Note: Although ALIGN has a default position on PPE, this may also be 'risk assessed out' e.g. where the risk is increased due to the activity or weather conditions, etc., with prior agreement from the ALIGN safety team and recorded upon the Point of Work Risk Assessment.

The information contained within this guidance note will also be used as guidance for checking that sub-contractors carrying out such activities are compliant.

3 References

- The Health and Safety at Work Act 1974
- The Management of Health and Safety at Work Regulations 1999
- The Personal Protective Equipment at Work Regulations 1992
- All Legislation, Approved Codes of Practice, British Standards and Guidance covering any item, or items of PPE.

4 Definitions

The term 'Personal Protective Equipment' means all equipment, (including clothing affording protection against the weather), which is intended to be worn or held by a person at work, which protects him or her against one or more risks to their health and safety, plus any addition or accessory designed to meet that objective.

5 Exemption

Turban-wearing Sikhs are exempt from the need to comply with other legislation that would require them to wear head protection whilst on a construction site, by virtue of sections 11 & 12 of the Employment Act 1989 (the Act). The exemption in section 11(1) of the Act says:

“Any requirement to wear a safety helmet, which would, by virtue of any statutory provision or rule of law, be imposed on a Sikh who is on a construction site, shall not apply to him at any time when he is wearing a turban”.

This means that turban-wearing Sikhs on construction sites are exempt from the duty under regulation 10(2) of the Personal Protective Equipment at Work Regulations 1992 (PPE Regulations) so far as it applies to head protection. Furthermore, turban-wearing Sikhs do not have to comply with the general duty under section 7(b) of HSW Act to co-operate with their employer so far as is necessary to enable the employer to comply with the duties placed on them, such as those contained in the PPE Regulations.

Section 11(2) of the Act also exempts turban-wearing Sikhs and any other persons from any legal requirements connected with wearing, providing or maintaining safety helmets in relation to turban-wearing Sikhs on construction sites. As a result, employers are relieved of their duties to a turban-wearing Sikh on a construction site under regulations 4 and 6 to 12 of the PPE Regulations.

Turban wearing Sikhs will need to be subject to a specific risk assessment to demonstrate they are not placed at unnecessary risk by not wearing a hard hat. Consideration maybe required to placing such persons to other duties where the risk of not wearing a hard hat does not compromise safety standards.

However, any workers (other than turban-wearing Sikhs working on construction sites) refusing to wear head protection (or other required and appropriate PPE) would be in breach of the PPE Regulations, regulation 10 and the Health and Safety

at Work etc. Act 1974, section 7, except where the use of PPE would not provide protection against any residual risk.

5.1 Background

In accordance with their religion, baptised Sikhs are required to wear their hair uncut and wrapped in a turban. This article of faith potentially brings them into conflict with legal provisions requiring head protection to be worn in workplaces where there are risks of head injury arising from the work undertaken. This potential conflict does not arise where Sikhs choose not to wear turbans.

6 Risk Assessment

6.1 Responsibility

6.1.1 The Project Lead

The Project Lead is responsible for ensuring that:

- A risk assessment and method statement are prepared, and that suitable control measures are implemented to reduce any identified risk to as low as reasonably practicable.
- The workforce have been consulted on the formulation of risk assessments and method statements and the relevant control measures being proposed.
- All personnel involved in or whom are likely to be affected by the work, receive adequate instruction and training to carry out their task.
- Work is carried out by trained and competent personnel instructed in the requirements of the risk assessment and method statement and the proposed control measures.
- Competent, trained personnel are appointed to supervise work areas covered by this procedure and related work activities.
- Control measures are reviewed on a periodic basis or when an incident or significant change dictates, to evaluate their on-going suitability and effectiveness. The workforce will be involved in this process. (Any changes deemed necessary will be implemented after proposals have been evaluated for hazards and risks, the method statement and risk assessment have been updated and briefed to the workforce and any additional training requirements carried out).

6.1.2 Other Personnel

In order to fulfil their responsibilities, the Project Lead may appoint other personnel to assist them. These appointed persons will be responsible to the Project Lead for the implementation of section 5.1.1 above as applicable to their appointment.

The Project Lead has appointed the Works Manager to implement the controls defined within this Procedure for the Early Works of the C1 Project, with relevant section managers being responsible for the implementation of this guidance note for the main works.

6.2 Hazards (NB: This list is not exhaustive)

Hazards, risks and requirements for personal protective equipment will vary greatly according to the nature of the work and the environment in which it is undertaken.

The following are a sample which may be considered.

- Environment
- Weather
- Work at height
- Work in confined spaces
- work over, adjacent to or in water
- Working in tunnels
- Temperature
- Noise
- Dust
- Vibration
- Gases, vapours, mist and fume
- Radiation
- Glare
- Contaminated land
- Grinding, chipping and breaking out operations
- Materials
- Plant and equipment
- Mobile plant/Road traffic

6.3 Risks (NB: This list is not exhaustive)

- Fatality
- Head injury
- Eye injury, loss of sight
- Long term health effects
- Sun burn, heat stress, sun stroke
- Skin disorders, dermatitis, cancers, etc.
- Hypothermia
- Vibration white finger
- Loss of hearing
- Lung disease, mesothelioma, asbestosis, lung cancer etc.
- Abrasions, cuts, puncture wounds, crushing
- Burns
- Asphyxiation
- Disease, tetanus, leptospirosis, aids, hepatitis
- Drowning

6.4 Preventative Measures

- Head protection
- Hearing protection
- Eye and face protection
- Respiratory protection
- Hand/arm protection, e.g. gloves, gauntlets, overalls
- Foot/leg protection, e.g. boots, overalls
- Life jackets
- Skin protection e.g. long sleeves and trousers to protect against sunburn, dusts, etc.
- Other specialist protection e.g. high visibility clothing, harnesses, breathing apparatus etc.

The Management of Health and Safety at Work Regulations require employers to identify and assess the risks to Health and Safety present in the workplace, so enabling the most appropriate means of eliminating or reducing those risks to an acceptable level. There is a hierarchy of control measures to attain this goal, engineering controls and safe systems of work always being considered first. PPE should be used either to supplement other measures or as the principal control where other measures are not feasible. PPE is considered the last resort, and should not be considered as the first option.

Selection of PPE shall include consideration of the risks to health and safety from the equipment itself – the use of PPE must not increase the risk to the user or others, suitability for the wearer/user, and effectiveness in eliminating or reducing risk to the user. Where several items of PPE are to be used together, then compatibility between these must be considered.

PPE should only be used for its correct purpose in suitable conditions. Consideration should be given to the comfort of the wearer/user and the work being undertaken.

E.g. safety helmets with reduced peaks may suit engineers better than traditional helmets when setting out.

Adequate stocks of PPE must be maintained - with consideration given to visitor's requirements.

Instruction/training in the use and inspection of PPE should be given to employees as part of the safe systems of work. PPE should generally be examined before being issued to the wearers and before first use. N.B. All breathing apparatus (B.A.) must be thoroughly examined at least once a month by a competent person (authorised by certificate to carry out such examinations) and inspected, tested and certificated at intervals not exceeding six months. Additional BA equipment should be checked inspected and tested after use and when brought onto a new site. Safety harnesses, lanyards, personal suspension equipment should be inspected before use, and then weekly inspections and six monthly thorough examinations being carried out and recorded.

Respiratory Protection – where work involves the production of dust or similar sized particles, all persons will be expected to wear suitable respiratory protective equipment (RPE). A FFP3 mask "JSP Click to Check" will be the minimum standard to meet this requirement. Further to this, each person must be 'Face Fit Tested' for their particular face mask prior to use.

Some forms of PPE, including Respiratory Protective Equipment, may be used by different persons. Procedures to ensure the equipment is cleaned/disinfected before re-issue must be in place. Inspection/examination, functional tests, cleaning and storage should be carried out in accordance with manufacturer's instructions.

Employees (including labour only or agency employees) shall not be charged for PPE. Individuals will be responsible for looking after their own PPE but will not be charged for essential replacement. PPE may, by arrangement, be charged to other contractors when issued to their personnel.

6.4.1 Eye Protection

Light Eye Protection

Light eye protection glasses (optical standard '1' for continuous use) will be worn by all employees, visitors and sub-contractors prescription safety glasses are suitable

for meeting this requirement, unless a risk assessment deems otherwise and additional safety eye protection is then required.

Safety Eye Protection

Where any employees are required to work in eye-hazardous occupations or tasks they shall wear safety glasses that conform to British and European Standards for eye protection. In such circumstances, prescription wearers are required to wear safety eye protection that is suitable and sufficient for the task, and any site specific requirements will need to be discussed and agreed by all parties concerned before work commences.

The form of safety eye protection will vary, from the use of impact-rated goggles to the use of prescription glasses upgraded to meet the impact safety requirements. All will be provided free of charge where required by the employer.

7 Emergency Procedure

Work involving the use of breathing apparatus or safety harnesses must have specific emergency/rescue procedures incorporated in the safe system of work, which take into account the duration of air supply, manufacturers recommended rescue time to release personnel suspended by safety harnesses etc.

8 Training

Personnel will be instructed in the use, storage, cleaning, maintenance and inspection of PPE and reporting procedure for lost or defective equipment. They will be informed of risk(s) the PPE is intended to eliminate/reduce.

Similarly, sub-contractors are required to ensure that their employees are competent to carry out their activities. ALIGN will periodically monitor sub-contractor competence records to ensure they are being maintained.

9 Documentation

The following shall be retained:

- Records of inspection
- Certification
- Risk assessments

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- COSHH assessments
- Method statements
- Evidence of training
- PPE Issue record sheets
- Records of inspection and thorough examinations of harnesses, lanyards, shock absorbers and scaffold hooks etc.

10 Appendix 1

10.1 PPE Policy Statement

The following policy details the standards of PPE and the general dress code, to be followed on all ALIGN sites. This equipment includes employees, contractors, visitors, etc.

DEFAULT POSITION		
PPE	Requirements	Align specific requirements
Safety Helmet (Hard Hat)	Hard hat (Conforming to BS EN397). Hard hats colours in accordance with CPP and shown upon below page. Note: Chin straps will be worn at all ALIGN work sites. The duty to wear a hard hat does not apply to turban wearing Sikh workers	Name of individual to be clearly identified along with company/employer name. See guidance below upon hard hat colours.
Hi Visibility Jacket/Vest	Long sleeved high visibility tops (orange) to be worn at all times (conforming to BS EN 471).	Mandatory and maintained in a clean condition.
Hi Visibility Trousers	Long high visibility trousers (orange) to be worn at all times (conforming to BS EN4 71).	Mandatory and maintained in a clean condition.
Hi Visibility Coveralls	One Piece light weight overalls or two piece coveralls (top and bottom) or a combination of the above mentioned with long sleeved high visibility polo shirt with collar. (Conforming to BS EN4 71).	Must be maintained in a clean condition
Respiratory Protection	Type dependent on activity; however where work involves the production of dust or similar sized particles, all persons will be expected to wear as a minimum, a FFP3- JSP Click to Check mask and they ,must be 'face-fit tested' prior to use.	Task risk assessment to be completed and evidence of Face Fit (every 12 months) to be provided.
Hearing Protection	Consideration to mandatory hearing protection is being taken for the main project works. However in the interim period all workers and visitors to ALIGN work sites will carry hearing protection at all times.	Task related for early works
Foot Protection	Complete with steel toe cap, metatarsal protection and mid sole protection to	No Rigger Boots

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	BS EN ISO 20345	
Hand protection	Default Position- Hand protection to be work in all work areas to minimum EN388 intermediate design	Mandatory wearing of appropriate hand protection- subject to contractors risk assessment.
Eye protection	Light Eye protection (which includes those who normally wear prescription glasses) to be worn by all site staff and operatives, contractors and visitors to a minimum of EN166, 1F or Safety Eye protection to be worn, but both must be risk assessed for the specific task or weather conditions.	Mirrored light eye protection is not permitted. Tinted light eye protection may only be worn outdoors in sunny conditions.

Role	Safety Helmet Colour
Contractor Working Foremen/Supervisors (gangsters/charge hands)	Black
Contractor Non-Working Foremen, Supervisors and Managers	Black +
All First Aiders/Medical Staff	Green
Trainees, Apprentices or Young Persons (16 to 18 years old)	Red
All Visitors not carrying out physical work	Blue
All other contractor personnel/operatives	White
All Banksmen, Vehicle Marshals	Yellow
Slingers/Signallers	Orange

10.2 Risk Assessment

A risk assessment will be completed if the following PPE/RPE is required to be worn:

RISK ASSESSED	
Fall Arrest	Arrest or Restraint to be identified
Hearing Protection (to EN352)	Type dependent on activity
Leg/Arm Protection	Type dependent on activity
Flame retardant clothing	Type dependent on activity
Chin strap for safety helmet	Dependent upon activity and weather conditions
Emergency rescue PPE/Equipment Rescue from height – e.g. Harnesses Confined spaces – e.g. ELSA sets, gas monitors Working over water – e.g. life buoys/belt	Type dependent on activity

Notes:

1. Any standards imposed should also take account of any further increased risks or changes in work circumstances. The standard of PPE can be increased to reflect the job/task being undertaken or as the result of an accident or incident trend analysis.
2. All PPE equipment must be subject to a specific schedule of inspections prior and during use.
3. Users of PPE equipment must receive training in its use.
4. Where our supply chain sub-contractors have carried out a PPE risk assessment for their site activities (e.g. concrete/piling activities) and are imposing the wearing of certain PPE to a higher standard than ALIGNs minimum requirements, then an assessment of the exposure of all other employees working in close proximity should be made with a view to comply with their PPE requirement.